

25NNCV09036 25NNCV09036

County: los-angeles

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Case Number: 25NNCV09036 Hearing Date: September 4, 2026 Dept: A

LOS ANGELES SUPERIOR COURT

NORTH CENTRAL DISTRICT - BURBANK

DEPARTMENT A

TENTATIVE RULING

SEPTEMBER 4, 2026

DEMURRER; MOTION TO STRIKE

Los

Angeles Superior Court Case # 25NNCV09036

MP: Defendant Edgar De La Torre

RP: No opposition received

NOTICE:

The

Court is not requesting oral argument on this matter. Unless the Court directs argument in the Tentative Ruling, no argument is required and any party seeking argument should notify all other parties and the court before the hearing of the party's intention to appear and argue. The tentative ruling will become the ruling of the court if no argument is received.

Notice

may be given either by email at BurDeptA@LACourt.org or by telephone at (818) 260-8412.

ALLEGATIONS:

On May 7, 2025, Eugenio Becerra Munoz ("Plaintiff") as seller and Edgar De La Torre ("Defendant," sued as "Edger" De La Torre) entered into a purchase and sale agreement for the business known as 99 Cleaners in Pasadena "as is" for \$130,000. Defendant agreed to make the funds available on the day of the transfer on June 6, 2025. Thereafter, the parties amended the Business Bill of Sale such that Defendant would: (1) pay an additional \$7,000 towards the security deposit for the lease of the property; and (2) pay \$100,000 by May 7, 2025, pay \$20,000 within the end of the month from date of purchase, and pay the remaining \$17,000 in 60 days. Plaintiff alleges Defendant failed to perform under the agreement.

The Complaint, filed December 17, 2025, alleges: (1) Breach of Contract; (2) Fraud; and (3) Negligent Misrepresentation.

MOTIONS ON CALENDAR:

On June 3, 2026, Defendant filed a Demurrer and Motion to Strike portions of the Complaint. The Court is not in receipt of an opposition brief. The Court notes that, pursuant to C.R.C. Rule 8.54(c), a failure to oppose a motion may be deemed consent to its being granted.

LEGAL STANDARD:

A. Demurrer

The grounds for a demurrer must appear on the face of the pleading or from judicially noticeable matters. (C.C.P. § 430.30(a); Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) The only issue involved in a demurrer hearing is whether the complaint states a cause of

action. (Id.)

A demurrer

assumes the truth of all factual, material allegations properly pled in the challenged pleading. (Blank, *supra*, 39 Cal.3d at p. 318.) No matter how unlikely or improbable, the plaintiff's allegations must be accepted as true for the purpose of ruling on the demurrer. (Del E. Webb Corp. v. Structural Materials Co. (1981) 123 Cal. App.3d 593, 604.) But this does not include contentions; deductions; conclusions of fact or law alleged in the complaint; facts impossible in law; or allegations contrary to facts of which a court may take judicial notice. (Blank, *supra*, 39 Cal.3d at 318.)

Pursuant to

C.C.P. §§ 430.10(e) and (f), the party against whom a complaint has been filed may demur to the pleading on the grounds that the pleading does not state facts sufficient to constitute a cause of action, or that the pleading is uncertain, ambiguous and/or unintelligible. It is an abuse of discretion to sustain a demurrer without leave to amend if there is a reasonable probability that the defect can be cured by amendment. (Schifando v. City of Los Angeles (2003) 31 Cal.4th 1074, 1082.)

B. Motion to Strike

Motions to strike are used

to reach defects or objections to pleadings that are not challengeable by demurrer, such as words, phrases, and prayers for damages. (See C.C.P. §§ 435, 436, and 437.) The proper procedure to attack false allegations in a pleading is a motion to strike. (C.C.P. § 436(a).) In granting a motion to strike made under C.C.P. § 435, "[t]he court may, upon a motion made pursuant to Section 435 [notice of motion to strike whole or part of complaint], or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading." (C.C.P. § 436(a).) Irrelevant matters include immaterial allegations that are not essential to the claim or those not pertinent to or supported by an otherwise sufficient claim. (C.C.P. § 431.10.)

The court may also "[s]trike

out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." (C.C.P. § 436(b).)

MEET AND CONFER:

C.C.P. §§ 430.41(a) and 435.5(a) require that the moving party meet and confer with the party who filed the pleading that is subject to the demurrer and/or motion to strike. Upon review, the Court finds the meet and confer requirements were met. (Denning Decl., ¶¶3-6.)

DEMURRER

ANALYSIS:

Defendant

demurs to the Second Cause of Action for Fraud and the Third Cause of Action for Negligent Misrepresentation on the grounds that they fail to state sufficient facts and are uncertain.

The elements for fraud are: (1) a representation, usually of fact, which is false; (2) knowledge of its falsity; (3) intent to defraud; (4) justifiable reliance upon the misrepresentation; and (5) damage resulting from that justifiable reliance.

(Stansfield v. Starkey (1990)

220 Cal. App. 3d 59, 72-73.) The

elements for negligent misrepresentation are: (1) a misrepresentation of a past or existing material fact; (2) without reasonable grounds for believing it to be true; (3) with intent to induce another's reliance on the fact misrepresented; (4) ignorance of the truth and justifiable reliance thereon by the party to whom the misrepresentation was directed; and (5) damages. (B.L.M. v. Sabo & Deitsch (1997) 55 Cal. App. 4th 823, 834.) Negligent misrepresentation, unlike fraud, does not require knowledge of falsity.

(Apollo Capital Fund, LLC v. Roth

Capital Partners, LLC (2007) 158 Cal.App.4th 226, 243.) These causes of action are torts of deceit and the facts constituting each element must be alleged with particularity; the claims cannot be saved by referring to the policy favoring liberal construction of pleadings. (Committee on

Children's Television, Inc. v. General Foods Corp. (1983) 35 Cal.3d 197,

216.) Since the claims must be pleaded with particularity, the

causes of action based on misrepresentations must allege facts showing how, when, where, to whom, and by what means the misrepresentations were tendered.

(Stansfield v. Starkey (1990) 220

Cal.App.3d 59, 73.)

In the Second Cause of Action for

Fraud, Plaintiff alleges that at the time the parties entered the agreement, Defendant intended to deceive Plaintiff into believing he would pay the balance of the purchase price in a timely manner and that he had the funds to do so. (Compl., ¶20.) Plaintiff contends that Defendant's representations were false, Defendant knew they were false, and he made the misrepresentations to induce Plaintiff to transfer the business to Defendant. (Id., ¶21.) Plaintiff alleges he was ignorant of the truth of the facts and Defendant's intent, believed Defendant's representations to be true, and relied on the representations by transferring the business to Defendant pursuant to the Bill of Sale of Business and the Addendum. (Id., ¶22.)

In the Third Cause of Action for

Negligent Misrepresentation, Plaintiff alleges similar facts that Defendant misrepresented that he would pay the balance of the purchase price in a timely fashion and had the funds to do so at the time of the agreement, Defendant lacked reasonable grounds for believing the representations to be true, he made the representation to induce Plaintiff to transfer the business without paying the agreed upon amount, and Plaintiff justifiably relied on the representations by transferring the business to Defendant. (Compl., ¶¶27-29.)

As currently alleged, the Fraud and Negligent Misrepresentation claims fail to allege the misrepresentation with the requisite specificity, such as how, when, where, to whom, and by what means the misrepresentations were tendered.

Furthermore, "[a]lthough a false promise to perform in the future can support an intentional misrepresentation claim, it does not support a claim for negligent misrepresentation." (Stockton Mortgage, Inc. v. Tope (2014) 233 Cal.App.4th 437, 458.) The Negligent Misrepresentation cause of action alleges a future promise to perform (i.e., make payment), which is not actionable.

As this is the first attempt at the pleading, the demurrer to the Second and Third Causes of Action is sustained with leave to amend.

MOTION

TO STRIKE ANALYSIS:

Defendant

moves to strike the allegations for punitive damages (Compl., ¶25; Prayer for Relief at ¶1.b) and attorney's fees (id., ¶17; Prayer for Relief at ¶1.d).

A. Punitive Damages

Plaintiff

seeks punitive damages in connection with the Second Cause of Action. (See Compl., ¶25.)

In

light of the ruling on the demurrer to the Second Cause of Action, the motion to strike the punitive damages allegations is moot.

B. Attorney's Fees

C.C.P. § 1021 states that attorney's fees are recoverable if allowed under statute and/or by agreement.

Plaintiff seeks attorney's fees in connection with the First Cause of Action for Breach of Contract.

Plaintiff alleges that due to Defendant's wrongful conduct, Plaintiff has retained an attorney and thus seeks damages in an amount unknown but according to proof at trial. (Compl., ¶17.) Plaintiff seeks reasonable attorney's fees and costs "pursuant to all applicable statutes." (Compl. at Prayer for Relief, ¶1.d.)

First, no statute is alleged upon which Plaintiff seeks attorney's fees, as requested in the Prayer.

Second, Plaintiff attaches a copy of the Business Bill of Sale and Extension of Lease of Property, neither of which include an attorney's fees provision. (Compl., Ex. A.) Similarly, the Addendum to Business Bill of Sale does not include an attorney's fees provision. (Id., Ex. B.)

As currently pled, Plaintiff has not provided a contractual or statutory ground for attorney's fees.

As such, the motion to strike the

attorney's fees allegations is granted with leave to amend.

RULING:

In

the event the parties submit on this tentative ruling, or a party requests a signed order or the court in its discretion elects to sign a formal order, the following form will be either electronically signed or signed in hard copy and entered into the court's records.

ORDER

Defendant Edgar De La Torre's Demurrer

and Motion to Strike came on regularly for hearing on September 4, 2026, with appearances/submissions as noted in the minute order for said hearing, and the court, being fully advised in the premises, did then and there rule as follows:

THE DEMURRER TO THE
COMPLAINT IS SUSTAINED WITH 30 DAYS' LEAVE TO AMEND AS TO THE SECOND AND THIRD
CAUSES OF ACTION.

THE MOTION TO
STRIKE IS GRANTED WITH 30 DAYS' LEAVE TO AMEND AS TO THE ATTORNEY'S FEES
ALLEGATIONS. THE REMAINDER OF THE MOTION
IS MOOT AS TO THE PUNITIVE DAMAGES ALLEGATIONS.

DEFENDANT
TO PROVIDE NOTICE.

IT
IS SO ORDERED.